Pennsylvania SB 992 Telemarketing Compliance Kit

The plain-English playbook and templates for Act 47 of 2026 — the rewrite of Pennsylvania's Telemarketer Registration Act. Effective October 19, 2026. Be compliant by October 18.

October 2026 Edition

IMPORTANT NOTICE

This kit is a research and checklist product. It is general information about a new law, written in plain English, with templates your attorney can adapt. It is NOT legal advice, it is not tailored to your facts, and it creates no attorney-client relationship. Where reputable sources disagree or the law's text is ambiguous, this kit says so in [UNVERIFIED] flags rather than guessing. Have a licensed Pennsylvania attorney review everything before you rely on it.

Pennsylvania's New Telemarketing Law — The Plain-English Playbook

DISCLAIMER — NOT LEGAL ADVICE. This playbook is general information about Pennsylvania's Act 47 of 2026 (SB 992), written for business owners and operators. It is not legal advice, it is not tailored to your facts, and it creates no attorney-client relationship. Telemarketing law is fact-specific and this Act interacts with the federal TCPA, FCC rules, and the Pennsylvania Unfair Trade Practices and Consumer Protection Law. Have a licensed Pennsylvania attorney review your calling and texting practices before you rely on anything here.

What changed, in one page

Pennsylvania's Telemarketer Registration Act (the Act of Dec. 4, 1996, P.L. 911, No. 147; 73 P.S. Sections 2241–2249) has been rewritten for the texting era by Senate Bill 992, approved by the Governor on July 20, 2026 as Act No. 47 of 2026.

The five changes that matter most to a business that calls or texts customers:

- "Telephone solicitation" now expressly means a telephone call, voicemail, ringless voicemail, or text message — to residential, business, or wireless subscribers. If you text your customers marketing messages, this Act is about you.
- Robocalls now require prior express written consent meeting four specific criteria — and "robocall" means an automated dialing system delivering prerecorded or artificial (including AI-generated) voice.
- The calling window narrowed and Sundays closed: no telephone solicitation on a Sunday, before 9 a.m., or after 7 p.m., and none on a legal holiday.
- Text opt-outs got a statutory keyword list: STOP, QUIT, END, REVOKE, OPT OUT, CANCEL, UNSUBSCRIBE.
- Registration duties bite harder: register with the Attorney General at least 30 days before you start, unless one of 13 exemption categories covers you — and it is unlawful to initiate OR RECEIVE a solicitation call or message while unregistered.

The timeline

- September 5, 2025 — SB 992 introduced (Printer's No. 1144).
- July 12, 2026 — final passage (House 202–0; Senate concurrence 50–0); presented to the Governor.
- July 20, 2026 — approved by the Governor; becomes Act No. 47 of 2026. The final text is Printer's No. 1649.
- October 19, 2026 — the Act takes effect (see the date note below). Treat October 18, 2026 as your deadline to be compliant.

THE DATE, HONESTLY. Section 5 of SB 992 says only: "This act shall take effect in 90 days." Ninety days after July 20 lands on Sunday, October 18 — and under Pennsylvania's general

time-computation rule (1 Pa.C.S. Section 1908), when the last day of a period falls on a Sunday, that day is omitted from the computation, making Monday, October 19, 2026 the effective date. Some vendor blogs report October 18; the major law-firm analyses report October 19. [UNVERIFIED as applied — no Attorney General guidance or court ruling specific to Act 47's effective date was located.] It costs you nothing to be ready a day early: this kit designs everything to October 18.

Who and what is covered

The Act regulates "telephone solicitation": a telephone call, voicemail, ringless voicemail, or text message made to a residential, business, or wireless telephone subscriber for the purpose of soliciting the sale of consumer goods or services, or obtaining information that will or may be used for direct solicitation, or extending credit for that purpose (Act Section 2, as amended).

Three scope points owners miss:

- Business numbers are covered. The old world where B2B calls sat outside telemarketing law is not this Act: business subscribers are named in the definition, in the do-not-call provisions, and in the consent prohibition.
- "Telemarketing" means a plan, program, or campaign involving more than one telephone solicitation. [UNVERIFIED — whether a single one-off message escapes the registration apparatus while still violating other provisions is a text question for counsel. Do not treat one-off sends as unregulated.]
- If you hire it out, it is still you. The duties run to the seller and the telemarketer or telemarketing business acting on the seller's behalf. A vendor's non-compliance does not insulate the business whose goods are being sold.

The five exclusions from "telephone solicitation"

A call or message is NOT a "telephone solicitation" at all if it is (Act Section 2, exclusions (1)–(5)):

- (1) Made with the subscriber's prior express written consent;
- (2) Made in reference to an existing debt, contract, payment, or performance;
- (3) Made to a person with whom the seller or telemarketer has an established business relationship within the past 12 months;
- (4) Made on behalf of a 501(c)(3), (5), or (8) organization, or a congressionally chartered veterans organization or its foundation;
- (5) Made on behalf of a political candidate or political party.

This matters more than it first appears: because consented communications fall outside the definition entirely, they are also outside the provisions that key off "telephone solicitation" — the quiet hours, the do-not-call prohibition, and in effect the registration trigger. Consent is not just a defense under this Act; properly documented, it takes the communication out of the regulated category. The burden of proving an exclusion is on the person claiming it (Act Section 8) — so the paperwork is the product. Keep the

records.

Caution: exclusions (2) and (3) are narrower than they feel. A "reference to an existing contract" is a service or billing communication about that contract — the moment it pitches an upgrade or a new product, it is soliciting a sale. And exclusion (3)'s 12-month clock runs from the last business relationship event, not from whenever the number entered your CRM.

Consent — prior express written consent

The Act defines "prior express written consent" as a written agreement between a called party and a seller that authorizes the seller to initiate (or cause to be initiated) a telephone solicitation to the called party, including a robocall or text message. To count, the agreement must meet four criteria (Act Section 2):

- (1) It identifies the telephone number to be solicited;
- (2) It clearly and conspicuously discloses that the party consents to receive telephone solicitations, including a robocall or text message;
- (3) It states that consent is not a condition of purchasing property or consumer goods or services;
- (4) It is signed by the called party — an electronic or digital signature consistent with the federal E-SIGN Act (15 U.S.C. Ch. 96) counts.

What consent is legally required for:

- Robocalls: prohibited without prior express written consent, unless the call is for emergency purposes or otherwise exempt (Act Section 5(a)(11)). "Robocall" requires two elements together: an automated dialing system, delivering prerecorded or artificial voice calls or messages (Act Section 2). An AI voice on an automated system is squarely inside this definition.
- Texts and ringless voicemail: the Act's express consent prohibition is written for robocalls. Whether an autodialed marketing text or a ringless voicemail drop is itself a "robocall" under the definition — which speaks of prerecorded or artificial voice "calls or messages" — is genuinely ambiguous on the text. [UNVERIFIED — counsel question.] What is not ambiguous: a text sent WITH prior express written consent is excluded from "telephone solicitation" entirely, and a text sent without it is regulated solicitation subject to quiet hours, the do-not-call list, and the opt-out rules.
- This kit's practice standard (a recommendation, not a quotation): collect prior express written consent meeting the four criteria before any marketing text, ringless voicemail, or automated/AI voice call. It is the only posture that is safe under every reading of the text. Template 02 in this kit is built to those four criteria.

Two more consent rules with teeth:

- Never obtain consent deceptively: using an unfair or deceptive act or practice to obtain a subscriber's consent is itself an unlawful act (Act Section 5(a)(12)).
- Consent is per seller and per number. The agreement is between the called party and

"a seller," and it must identify the telephone number. Consent given to one business does not transfer to another, and consent for one number does not cover a different number.

Quiet hours, Sundays, and holidays

The Act makes it unlawful to initiate or cause to be initiated (Act Section 5(a)(1) and (a)(10)):

- A telephone solicitation on a Sunday — all day;
- A telephone solicitation after 7 p.m. or before 9 a.m., on any day;
- A telephone solicitation or message on a legal holiday.

So the lawful window for solicitation calls and texts is Monday through Saturday, 9:00 a.m. to 7:00 p.m., excluding legal holidays. That is two hours narrower in the evening than the federal TCPA's 8 a.m.–9 p.m. window — if your dialer or texting platform is set to federal hours, it is set wrong for Pennsylvania.

Two honest gaps in the text:

- Time zone: the Act does not say whose 9 a.m. and 7 p.m. control — yours or the recipient's. [NOT IN TEXT.] The defensible operating rule, and the one law firms recommend, is the recipient's local time. This kit's rules card (Template 04) is built on recipient-local time as a practice standard, labeled as such.
- "Legal holiday" is not defined in SB 992. [NOT IN TEXT.] Do not rely on a holiday list printed in any summary of this Act — confirm the applicable Pennsylvania legal-holiday calendar with counsel and calendar those dates as no-solicitation days.

Opt-outs — texts, calls, and robocall mechanics

Pennsylvania now has three overlapping opt-out regimes. All three must work at once.

Text messages — the seven keywords

A person may state their intent to stop receiving telephone solicitation text messages by responding "STOP," "QUIT," "END," "REVOKE," "OPT OUT," "CANCEL," or "UNSUBSCRIBE" in reply to an incoming text (Act Section 5(a)(2)). The list is closed — those seven — but read the paragraph whole: the same provision separately prohibits soliciting anyone who "previously has stated" they do not wish to receive solicitations from the seller. A customer who writes "leave me alone" in plain words has stated it; honor any clear statement, keyword or not.

- Honor deadline: SB 992 states NO deadline for honoring a text opt-out. [NOT IN TEXT.] Do not let anyone tell you Pennsylvania gives you 10 business days — that figure is the federal FCC revocation rule (47 C.F.R. Section 64.1200(a)(10)), a separate federal obligation. This kit's practice standard: suppress immediately, and treat same-day as the outer limit.
- Safe harbor: no liability for a post-opt-out contact if you (i) established and implemented written procedures to comply, (ii) trained your personnel, (iii) maintained

and recorded lists of persons not to be contacted, and (iv) the contact resulted from error (Act Section 5(a)(2)). Translation: the written procedure and the log are your defense. Template 03 gives you both.

Robocalls — immediate removal, engineered opt-out

A telemarketer using robocalls must maintain an opt-out procedure under which the called party is "immediately" taken off the call list (Act Section 5.2(l)):

- Notice of the opt-out mechanism at the beginning of the call;
- An automated, interactive voice- or key-press opt-out available within two seconds of disclosing the caller's name and the name of the person or entity on whose behalf the call is made — and available throughout the call;
- You may NOT require the called party's written consent as a condition of opting out;
- A robocall that lands in voicemail must include a toll-free callback number that connects directly to the automated opt-out mechanism, which automatically records the number onto your do-not-call list.

Live calls

Disclose promptly at initial contact: the purpose of the call, your name or business name, and what is being sold (Act Section 5(a)(5)). End the solicitation the moment the called party indicates they want it ended (Act Section 5(a)(8)). A stated refusal also puts the person on your must-not-contact records under Section 5(a)(2).

The do-not-call list — your quarterly duty

- Never solicit a subscriber enrolled on the do-not-call list maintained by the list administrator. The prohibition takes effect 30 days after the quarterly list that first contains the subscriber is issued (Act Section 5.2(a)) — so a fresh enrollment is not an instant bar, but your scrubbing cadence must be tight enough to catch it within that window.
- You must quarterly obtain the list of enrolled Pennsylvania subscribers — residential, business, and wireless — or use a service provider that has quarterly obtained it and will use it (Act Section 5.2(b)). "Our platform handles it" only counts if the platform actually obtains the PA list quarterly; get that in writing from the vendor.
- Use the list only to remove subscribers from solicitation lists — any other use is prohibited (Act Section 5.2(g)).
- Keep your own internal do-not-call records (every opt-out, every refusal) separate from and in addition to the official list, and keep the written procedures, training records, and error logs that the safe harbor requires.

Registration — the 30-day rule and the 13 exemptions

Unless an exemption covers you, a telemarketer — or the telemarketing business that employs the telemarketer — must register with the Office of Attorney General at least 30 days before offering consumer goods or services for sale through any medium (Act Section 3(a)). While unregistered, it is unlawful to initiate a call or message to a

Pennsylvania subscriber — or to RECEIVE one — in connection with the purchase of consumer goods or services (Act Section 3(b)). Note the reach: registration is not only about outbound campaigns; and businesses that provide telemarketing services to entities under common ownership or control for less than five years must register notwithstanding other provisions.

Registration does not apply to (Act Section 3(a) and (b.1)):

- Persons or businesses licensed by or registered with a federal or Commonwealth agency, acting within the scope of that license or registration;
- The 13 exemption categories of Section 3(b.1), including (in shorthand — each carries detailed conditions in the text): catalog sellers meeting circulation and format criteria; sellers who complete sales only at a later face-to-face meeting; book/video/record clubs and negative-option plans; established business-to-business sellers; enumerated nonprofits and educational/hospital/library institutions; sellers soliciting their own prior purchasers (3 years under the same name); newspaper and periodical solicitors; Pennsylvania retail establishments (2+ years, majority of business at the physical location); long-standing telemarketing-service providers serving exempt clients; small food/produce sellers; SEC-registered issuers; and a new 13th category — anyone whose calls or messages do not meet the definition of "telephone solicitation" in the first place.

Do not self-certify an exemption from a summary — including this one. The exemption paragraphs carry multi-part conditions, and the burden of proving an exemption is on the person claiming it (Act Section 8). Template 06 walks the determination in order; the final call belongs to your attorney.

Bond, fee, and criminal exposure — stated carefully: SB 992 does not amend the Act's registration-mechanics section (73 P.S. Section 2244). Under the pre-Act 47 consolidated Act, registration carries a $50,000 surety bond (or cash, certificate of deposit, or government bonds in lieu), a $500 biennial application fee, and failure to register is a misdemeanor of the second degree. [UNVERIFIED against the post-Act 47 consolidation — SB 992 leaves Section 2244 untouched, so continuity is expected, but confirm the current figures with the Attorney General's office or counsel before budgeting or filing.]

Caller ID, screening, and synthetic media

- Caller ID: no telemarketer may act with the primary intent to prevent transmission of its name or number, or to falsely identify its name or number, to any recipient (Act Section 5.1). Note the intent element — the Act does not impose a flat, intent-free spoofing ban — and note that the old equipment-capability qualifier has been deleted. The same section bars acting with the primary intent to circumvent, bypass, or disable a subscriber's call- or message-screening products.
- Federal standards are incorporated: deceptive or abusive telemarketing acts violating the federal Telemarketing Sales Rule (16 C.F.R. Part 310), 47 U.S.C. Section 227(e), or FCC caller-ID rules are unlawful under the Act as well (Act Section 5(a)(9)).

- Synthetic media: using any technology or synthetic or computer-generated messaging TO DEFRAUD, DECEIVE, OR MISLEAD a subscriber is prohibited (Act Section 5(a)(13)). That is the whole of the Act's AI rule. There is NO general AI-disclosure or AI-labeling duty in this Act. [NOT IN TEXT.] If you have seen a summary claiming Pennsylvania now requires disclosing AI voices, that duty comes from other law or from a vendor's policy — not from SB 992. Lawful AI voice use still needs prior express written consent when it is a robocall (Section 5(a)(11)), and it may never be used to deceive.

Sales paperwork

A sale made during a telephone solicitation must generally be reduced to a written contract signed by the consumer, stating the seller's and telemarketer's names, addresses, and phone numbers, the total price, a detailed description matching the oral description, and the representations made during the solicitation (Act Section 5(a)(7) and (c)). Exceptions exist in Section 5(d), which SB 992 does not reproduce in full. [UNVERIFIED in detail — review Section 5(d) of the Act with counsel before structuring a phone-sale checkout.]

Penalties and enforcement — attributed correctly

SB 992 itself contains no dollar penalties. [NOT IN TEXT.] The money exposure arrives through the Act's surviving Section 6(a): "A violation of this act is also a violation of" the Pennsylvania Unfair Trade Practices and Consumer Protection Law (UTPCPL). Through that bridge:

- Civil penalties (UTPCPL Section 201-8(b)): in an action by the Attorney General or a District Attorney, where the court finds the unlawful practice was used WILLFULLY, a civil penalty of up to $1,000 per violation — and up to $3,000 per violation where the victim is 60 years of age or older. Willfulness is an element; these are UTPCPL amounts, recovered by the Commonwealth — not fines printed in SB 992.
- Private lawsuits (UTPCPL Section 201-9.2): a purchaser or lessee of goods or services primarily for personal, family, or household purposes who suffers an ascertainable loss may sue for actual damages or $100, whichever is greater, and the court may award up to treble damages plus costs and reasonable attorney's fees. [Partially UNVERIFIED — stated from the UTPCPL text as reproduced in secondary compilations; verify before quantifying exposure.]
- Violating an injunction or an assurance of voluntary compliance carries its own penalty of up to $5,000 per violation under UTPCPL Section 201-8(a) — context only; it is how a first enforcement action makes the second one expensive.
- Registration failure is criminal: a misdemeanor of the second degree under the underlying Act (see the registration section's verification note).
- Do-not-call complaints: the Bureau of Consumer Protection investigates; the Attorney General may sue for penalties and injunctive relief; and the complainant receives 10% of any civil penalty collected, capped at $100 per person (Act Section 5.2(k)) — a built-in bounty that gives every annoyed customer a reason to report you.

- Nothing in the Act limits remedies available under the UTPCPL or any other state or federal law (Act Section 7). Federal TCPA exposure — including its private right of action — stacks on top of everything above.

Per violation means per call, per text, per voicemail drop. A 2,000-recipient texting campaign that violates the consent or quiet-hours rules is not one violation with a $1,000 ceiling; it is 2,000 of them.

The action plan

This week (before anything else)

- [ ] Inventory every outbound channel: live calls, autodialed calls, AI/agent voice, texts (platform and manual), ringless voicemail, voicemail drops. Note the vendor behind each.
- [ ] Pull your consent records. For every list you market to, can you produce a written agreement meeting the four criteria, per person, per number? Where the answer is no, mark that list "excluded-definition dependent" and plan to re-permission or rely on another exclusion — with counsel.
- [ ] Audit your opt-out handling end-to-end (Template 03): send test STOP / QUIT / END / REVOKE / OPT OUT / CANCEL / UNSUBSCRIBE messages and confirm suppression across every system, including your CRM and your vendor's platform.
- [ ] Check every scheduled send's clock: no Sundays, nothing before 9:00 a.m. or after 7:00 p.m. recipient-local, holidays blocked (Template 04).
- [ ] Start the registration determination (Template 06). If you must register, the 30-day advance clock means this cannot wait for the effective date.

By October 18, 2026

- [ ] Consent templates replaced with four-criteria language everywhere consent is captured — web forms, paper forms, point of sale, recorded lines (Template 02).
- [ ] Robocall opt-out mechanics verified against Section 5.2(l): beginning-of-call notice, opt-out available within two seconds of the name disclosures and throughout, no written-consent condition, toll-free voicemail callback that auto-records the number.
- [ ] Do-not-call scrubbing on a quarterly cadence with the 30-day effectiveness lag built in (Template 05); vendor attestations in writing.
- [ ] Caller ID audit: every outbound number correctly identifies your business; no number masking, rotating, or spoofing practices anywhere in the stack.
- [ ] Team trained on the identification script (purpose, name, what is being sold — promptly), the hang-up duty, and the refusal-recording rule. Training logged.
- [ ] Consent-and-call log running (Template 07) — consent artifacts, opt-outs, honor times, DNC check dates.

Ongoing

- [ ] Quarterly: obtain the new PA do-not-call list (or confirm your provider did); refresh suppressions.

- [ ] On every campaign: verify consent basis per recipient segment before send; verify send window; verify caller ID.
- [ ] On every opt-out: suppress immediately; log it; review the log monthly for system leaks.
- [ ] Annually (or on any change of vendor, platform, or script): re-run this checklist and have counsel re-review. Add Update Assurance if you want the revised editions of this kit delivered as guidance evolves.

Frequently asked questions

- We only text existing customers. Are we covered? Maybe — communications about an existing contract, or to someone with an established business relationship within the past 12 months, are excluded from "telephone solicitation." But a marketing pitch is a solicitation even to a current customer, the 12-month clock is real, and you carry the burden of proving the exclusion. Most "existing customer" texting programs still need the hygiene in this kit.
- We use an AI voice agent for outbound calls. What applies? If the calls use an automated dialing system delivering artificial voice, they are robocalls: prior express written consent is required before each call (emergencies excepted), and the Section 5.2(l) opt-out mechanics apply. The Act imposes no separate AI-disclosure duty, but using the technology to defraud, deceive, or mislead is prohibited — an AI voice presented as a human crosses that line.
- Is one text really a $1,000 violation? The $1,000 figure is the UTPCPL civil-penalty ceiling per violation in a willful-use case brought by the AG or a DA — not an automatic fine per text, and not a number printed in SB 992. Private plaintiffs sue under UTPCPL Section 201-9.2 instead. The honest summary: per-violation stacking makes campaign-scale non-compliance genuinely dangerous, and counsel should model your actual exposure.
- Does the Act require consent for live-agent calls? The express consent prohibition (Section 5(a)(11)) covers robocalls. Live calls are governed by the definition's exclusions, quiet hours, the do-not-call list, registration, and the refusal rules. A live call to someone with prior express written consent is excluded from "telephone solicitation" altogether — which is why the consent file is still the safest foundation.
- We're a small business — is there a size exemption? No general small-business exemption appears in the Act. The registration exemptions are category-based (Section 3(b.1)), not size-based, and the solicitation rules apply to any seller or telemarketer.
- What about inbound calls? Mostly outside "telephone solicitation" — but note Section 3(b): it is unlawful to RECEIVE a call or message in connection with a purchase while unregistered, if you are a telemarketer or telemarketing business that was required to register. Purely inbound operations should still run the registration determination.
- Does federal compliance cover us? No. The TCPA window (8 a.m.–9 p.m.) is wider than Pennsylvania's (9 a.m.–7 p.m., no Sundays), federal consent rules differ in structure,

and the PA registration and do-not-call regimes are Pennsylvania's own. Comply with both; where they differ, the stricter rule governs your conduct in practice.

Sources

Primary: SB 992, Printer's No. 1649 (final text), and the SB 992 bill history, Pennsylvania General Assembly (palegis.us) — approved July 20, 2026, Act No. 47 of 2026. 1 Pa.C.S. Section 1908 (computation of time). The Telemarketer Registration Act as consolidated before Act 47 (73 P.S. Sections 2241–2249), including Sections 2243–2244 (registration, bond, fee). UTPCPL, 73 P.S. Sections 201-8 and 201-9.2.

Secondary (cross-checks; the enrolled text governs wherever they differ): Troutman Pepper Locke, JD Supra alert on SB 992 (effective date October 19 — correct); Robinson + Cole, JD Supra alert; Convoso and dnc.com summaries (effective date October 18 — superseded by the Section 1908 computation, see the timeline note). Internal research memo reconciling all of the above against Printer's No. 1649, October 13, 2026.

This playbook was prepared from the sources above on October 13, 2026. Statutes, regulations, and agency guidance change. Verify requirements against the current law and consult licensed Pennsylvania counsel before acting.

Template A — Prior Express Written Consent Agreement

DISCLAIMER — NOT LEGAL ADVICE. This template is general information, not legal advice. It is structured around the four criteria in the definition of "prior express written consent" in Pennsylvania's Telemarketer Registration Act, Section 2 (as amended by Act 47 of 2026). It has not been reviewed for your business, your industry, or your other legal obligations (including the federal TCPA and FCC rules, which impose their own consent requirements). Have a licensed Pennsylvania attorney review and approve your final consent language before you use it.

Why this template exists

Under the Act, an agreement counts as prior express written consent only if it: (1) identifies the telephone number authorized; (2) clearly and conspicuously discloses consent to receive telephone solicitations, including a robocall or text message; (3) states that consent is not a condition of purchasing property or consumer goods or services; and (4) is signed by the called party (electronic or digital signature per the federal E-SIGN Act counts). A robocall without this consent is unlawful (Act Section 5(a)(11)), and any communication made WITH this consent is excluded from "telephone solicitation" entirely — which also takes it outside the quiet-hours and do-not-call provisions. Do not obtain consent through any unfair or deceptive practice: that is independently unlawful (Act Section 5(a)(12)).

The agreement (fill in every bracket)

Consent to Receive Calls and Text Messages

I agree that [SELLER LEGAL NAME] ("Seller") may send or cause to be sent telephone solicitations — including robocalls (calls using an automated dialing system delivering prerecorded or artificial voice) and text messages — to me at the following telephone number:

Telephone number: [NUMBER]

I understand that:

- My consent is not a condition of purchasing any property, goods, or services.
- Messages and calls may be sent using an automated system. Message and data rates may apply.
- I may revoke this consent at any time — for text messages, by replying STOP, QUIT, END, REVOKE, OPT OUT, CANCEL, or UNSUBSCRIBE; for calls, by telling the caller or contacting Seller at [REVOCATION CONTACT — phone/email/address].
- Consent applies to Seller only. It does not authorize any other business to contact me.

Signature: _____ Date: _____

Printed name: _____

[For electronic capture: replace the signature block with your e-signature mechanism and record the audit trail described in the capture notes below.]

Capture notes by channel

Web form

- The consent language must appear clearly and conspicuously at the point of capture — not behind a link, not in pre-checked fine print. A pre-checked box undermines both the "clear and conspicuous" criterion and the Section 5(a)(12) deception prohibition.
- Use an unchecked checkbox or an explicit signature/acknowledgment action tied to the phone-number field.
- Store, for every consent: the exact language version shown, the full text or screenshot of the form, timestamp, IP address, the number entered, and the signature/acknowledgment record. This is your E-SIGN evidence and your burden-of-proof file (the burden of proving an exclusion is on you — Act Section 8).

Paper form (in store / at point of sale)

- Use the agreement above as a standalone block ABOVE the signature line — never fold consent into a general terms signature without the separate disclosure.
- File the signed original (or a legible scan) keyed to the phone number, and log it in the consent log (Template 07) the same day.

Recorded line / verbal-to-written confirmation

- A purely verbal "okay" is NOT prior express written consent. If a customer agrees by phone, follow up with a written confirmation (text or email) that presents this agreement and captures an affirmative e-signature or reply-based acknowledgment — and do not send marketing messages until that written artifact exists.

Purchased or rented lists

- Consent runs to a named seller. A third party's consent file for a different seller does not authorize your robocalls, and does not exclude your messages from "telephone solicitation." Do not buy "consented leads" for automated outreach without counsel reviewing the consent chain.

Version control

- Date this template's language version and keep retired versions. Your consent records are only as strong as your ability to show WHICH language each person agreed to.
- If you change the disclosure text materially, re-capture consent under the new version before relying on it for robocalls.

Template B — Opt-Out Handling Procedure

DISCLAIMER — NOT LEGAL ADVICE. This procedure is general information, not legal advice. It operationalizes Act Sections 5(a)(2) and 5.2(l) (as amended by Act 47 of 2026) and notes where federal rules differ. Have a licensed Pennsylvania attorney review your final procedure.

The rules this procedure implements

- A person may stop telephone solicitation TEXT messages by replying "STOP," "QUIT," "END," "REVOKE," "OPT OUT," "CANCEL," or "UNSUBSCRIBE" (Act Section 5(a)(2)). Separately, ANY prior statement that a person does not wish to receive solicitations from you — any wording, any channel — prohibits further solicitation of that person.
- SB 992 states no deadline for honoring a text opt-out. [NOT IN TEXT.] The federal FCC rule allows up to 10 business days for revocation of consent under the TCPA (47 C.F.R. Section 64.1200(a)(10)) — that is a federal ceiling, not a Pennsylvania safe harbor, and it does not apply to robocalls under PA law (see below). House standard: suppress immediately; same business day is the outer limit.
- ROBOCALLS are stricter: the called party must be "immediately" taken off the call list (Act Section 5.2(l)).
- The Act's safe harbor protects an erroneous contact only if you established and implemented written procedures, trained personnel, and maintained and recorded do-not-contact lists (Act Section 5(a)(2)). This document + your log (Template 07) are that evidence.

Procedure

1. Recognize (every channel, every wording) Configure every sending system to detect, at minimum, these exact replies to text messages: STOP · QUIT · END · REVOKE · OPT OUT · CANCEL · UNSUBSCRIBE

Also route to a human review queue any reply expressing refusal in other words (for example: "stop texting me," "remove me," "leave me alone," "no more messages"). A clear statement in any words ends solicitation to that person.

For voice: any statement during a call that the person wants no more calls, or wants the call ended, is an opt-out — the agent ends the call immediately (Act Section 5(a)(8)) and records the number.

2. Suppress (immediately)

- [ ] The number is added to the master suppression list the moment the opt-out is received (automated for keyword replies; same business day for human-reviewed items).
- [ ] Suppression propagates to EVERY sending system: dialer, texting platform, ringless voicemail vendor, CRM campaign tools, and any agency sending on your behalf. One list of record; vendors pull from it or receive it before every campaign.

- [ ] Suppression is by NUMBER and by PERSON where identifiable — a new number from the same person does not reset their refusal.
- [ ] Suppression never expires on its own. Removal requires a new, documented prior express written consent from that person.

3. Confirm (once, then silence)

- Texts: a single confirmation message with no marketing content (for example, "You have been unsubscribed and will receive no further marketing texts from [Seller].") is standard practice — then no further solicitation messages, ever.
- Never require the person to do anything else — no forms, no calls, no written consent as a condition of opting out (for robocalls this is explicit: Act Section 5.2(l)(1)(iii)).

4. Record (every opt-out, in Template 07) Log: date/time received, number, channel, the exact wording or method, date/time suppression was applied in each system, and who/what applied it. Retain logs with your consent records.

5. Robocall-specific mechanics (Act Section 5.2(l)) — verify before any robocall campaign

- [ ] The opt-out mechanism is announced at the BEGINNING of the call.
- [ ] An automated interactive voice/key-press opt-out is available within TWO SECONDS of disclosing the caller's name and the name of the person/entity on whose behalf the call is made — and remains available throughout the call.
- [ ] Opting out takes the party off the call list IMMEDIATELY.
- [ ] No written consent is required as a condition of opting out.
- [ ] Voicemail-dropped robocalls include a TOLL-FREE callback number connecting directly to the automated opt-out mechanism, which automatically records the number to your do-not-call list.

6. Audit (monthly, and before every campaign)

- [ ] Send test messages from a test number: reply with each of the seven keywords, one per test cycle, and confirm suppression in every system.
- [ ] Send one plain-language refusal ("Please stop contacting me") and confirm it reaches the review queue and results in suppression.
- [ ] Sample 10 numbers from the suppression list and confirm none appear in any active campaign audience.
- [ ] Reconcile vendor audiences against the master suppression list; get vendor attestation in writing.
- [ ] File the audit (date, tester, results, fixes) with your compliance records.

7. Error response If a solicitation reaches a suppressed number: stop, document the error and its cause, fix the system gap, and preserve the record — the Act's safe harbor turns on written procedures, training, recorded lists, and genuine error. An undocumented error looks like a practice.

Template C — Quiet-Hours Rules Card (post this where campaigns are built)

DISCLAIMER — NOT LEGAL ADVICE. General information from Act Sections 5(a)(1) and 5(a)(10) (as amended by Act 47 of 2026). Items marked [PRACTICE STANDARD] are this kit's recommended operating rules where the Act's text is silent — not quotations of the statute. Have counsel confirm your final settings.

The law (Act Section 5(a)(1) and (a)(10))

It is unlawful to initiate or cause to be initiated:

- A telephone solicitation on a Sunday — all day, no exceptions in the text.
- A telephone solicitation after 7:00 p.m. or before 9:00 a.m. — any day.
- A telephone solicitation or message on a legal holiday.

"Telephone solicitation" = live calls, autodialed calls, AI/agent voice calls, prerecorded calls, text messages, voicemails, and ringless voicemails sent to solicit sales. If it pitches, these hours govern it.

The lawful window

Monday–Saturday, 9:00 a.m. – 7:00 p.m., excluding legal holidays.

Note the difference from federal law: the TCPA window is 8 a.m.–9 p.m. Pennsylvania closes two hours earlier. If any platform is still set to federal hours, it is wrong for PA.

Practice standards where the text is silent

- Whose clock? [PRACTICE STANDARD] The Act does not name a time zone. Use the recipient's local time — the conservative rule law firms recommend. A 6:45 p.m. send from Erie to a recipient in a later time zone can be a 7:45 p.m. violation there.
- Which holidays? [PRACTICE STANDARD] "Legal holiday" is not defined in SB 992. Do not trust a holiday list attributed to this Act. Block, at minimum, the legal holidays observed by the Commonwealth of Pennsylvania and the federal holidays falling on your campaign calendar — and have counsel confirm the list annually.
- Scheduled and queued sends count. A message you queued at noon that a platform delivers at 7:05 p.m. was "initiated" into a prohibited window as a practical matter. Set hard send-window cutoffs inside every platform, with a buffer — stop initiating by 6:45 p.m. recipient-local.
- Consented communications. A call or message made with the recipient's prior express written consent is excluded from "telephone solicitation," so the quiet hours keyed to solicitation do not apply to it. Consent records are the proof — no artifact, no exclusion.

Dialer / platform settings checklist

- [ ] Send window set to 09:00–19:00, recipient-local time zone per contact.

- [ ] Sundays blocked entirely at the platform level (not by campaign habit).
- [ ] Legal-holiday blocklist loaded for the current year and set to auto-block.
- [ ] Initiation cutoff buffered (no new sends after 18:45 recipient-local).
- [ ] Ringless voicemail and voicemail-drop jobs bound by the same window as calls.
- [ ] Text scheduling tools audited — many default to immediate send regardless of hour for API-triggered messages.
- [ ] After-hours inbound replies handled by a non-solicitation auto-response only; no promotional content in off-hours messages.
- [ ] Quarterly re-check: platforms reset settings on updates; verify the window after every vendor change.

Template D — Do-Not-Call Hygiene Checklist

DISCLAIMER — NOT LEGAL ADVICE. General information from Act Section 5.2 (as amended by Act 47 of 2026). Have a licensed Pennsylvania attorney confirm your do-not-call process.

The duties (Act Section 5.2)

- Never initiate a telephone solicitation to a subscriber enrolled on the do-not-call list maintained by the list administrator. The bar applies 30 days after the quarterly list that first contains the subscriber is issued (Section 5.2(a)) — your scrubbing must run inside that window.
- Quarterly, obtain the list of enrolled Pennsylvania subscribers (residential, business, and wireless) — or use a service provider that has quarterly obtained it and will use it (Section 5.2(b)).
- Use the list only to remove subscribers from solicitation lists. Any other use is prohibited (Section 5.2(g)).
- Pennsylvania enrollment feeds the national registry mechanism — but scrubbing only the federal list is not the same as obtaining the PA list. Do both.

Quarterly cycle checklist

- [ ] Obtain this quarter's PA do-not-call list (directly, or written confirmation from your provider that they obtained and applied it — keep the confirmation).
- [ ] Scrub every active and planned campaign audience against the new list before the 30-day effectiveness window closes.
- [ ] Record the scrub: list version/issue date, scrub date, tool or provider used, number of records removed per campaign.
- [ ] Confirm your internal suppression list (Template 03) was applied IN ADDITION to the official list — they are different lists with different sources.
- [ ] Confirm no team or vendor used the DNC data for anything other than suppression (no enrichment, no lead scoring, no resale).

Standing hygiene rules

- [ ] Every campaign audience is scrubbed as close to send time as operations allow — a scrub from last quarter does not cover this quarter's enrollees.
- [ ] Numbers are never "rested and retried." Removal is permanent unless the person gives new prior express written consent (Template 02).
- [ ] Wrong numbers and reassigned numbers are removed on first notice and logged — soliciting the new subscriber at an old customer's number has no exclusion behind it.
- [ ] Vendors and agencies sending on your behalf certify their scrub cadence in writing, per campaign. "We handle compliance" is not a certification.
- [ ] Records kept per campaign: audience source, consent basis by segment, scrub evidence, send window, opt-out results (Template 07). If it is not logged, it did not

happen — and the burden of proof on exclusions and defenses sits with you (Act Section 8).

Template E — Telemarketer Registration Checklist

DISCLAIMER — NOT LEGAL ADVICE. General information from Act Section 3 (73 P.S. Section 2243, as amended by Act 47 of 2026) and the Act's registration-mechanics section (73 P.S. Section 2244, which SB 992 does not amend). Registration determinations are fact-specific; the exemption paragraphs carry detailed multi-part conditions that this checklist only summarizes. Do not self-certify an exemption from this checklist. The burden of proving an exemption is on the person claiming it (Act Section 8). Final determination: your Pennsylvania attorney.

Step 1 — Are you in the Act at all?

You are a "telemarketer" if you (or your business), in connection with telemarketing, initiate or receive telephone calls or messages to or from a residential, business, or wireless subscriber in Pennsylvania — or you are located in Pennsylvania when such calls or messages are initiated or received. A "telemarketing business" is a person or business that is or has engaged in the business of telemarketing (a plan, program, or campaign involving more than one telephone solicitation).

- [ ] We initiate outbound calls/texts/voicemails that solicit sales to PA subscribers → continue to Step 2.
- [ ] We only receive inbound calls/messages in connection with purchases → STILL continue: Section 3(b) makes it unlawful to initiate OR RECEIVE while unregistered if registration was required.
- [ ] Our calls/messages never solicit consumer goods or services (pure service/transactional, within the definition's exclusions) → note category (13) in Step 3, and document the analysis with counsel.

Step 2 — The registration rule

Unless an exemption applies, a telemarketer — or the telemarketing business employing the telemarketer — must register with the Office of Attorney General at least 30 days before offering consumer goods or services for sale through any medium (Act Section 3(a)).

- [ ] The 30-day clock runs BEFORE you start, not before the law's effective date. If you determine you must register, file immediately — every day unregistered is exposure.
- [ ] Special rule: a business providing telemarketing services to other entities under the same ownership or control for less than five years must register notwithstanding other provisions.
- [ ] Licensed/registered persons: Section 3(a) does not apply to a person or business licensed by or registered with a federal or Commonwealth agency acting within the scope of that license or registration. Out-of-scope solicitation loses this cover.

Step 3 — Walk the 13 exemption categories (Act Section 3(b.1))

Check any that might apply — then have counsel test the FULL conditions of each (the

shorthand below omits most conditions):

- [ ] (1) Catalog sellers (multi-part test: page count, multi-state distribution, annual issuance, circulation threshold, and more)
- [ ] (2) Sales completed only at a later face-to-face meeting, or literature sent without prepayment (with a payment-collection carve-out)
- [ ] (3) Book / video / record clubs and negative-option plans
- [ ] (4) Business-to-business sellers (3+ years under the same name; 50%+ of dollar volume from repeat sales to existing businesses)
- [ ] (5) Federally or Commonwealth licensed/certificated/registered businesses acting within scope
- [ ] (6) Enumerated nonprofits — educational institutions, hospitals, public nonprofit libraries, nonprofit senior centers/nursing homes, bona fide PTA/PTOs, congressionally chartered corporations audited by the Department of Defense, charities receiving $25,000/year or less (cover lost if an unregistered professional fundraising counsel or solicitor is used)
- [ ] (7) Sellers soliciting their own prior purchasers (enterprise operating 3+ years under the same name)
- [ ] (8) Newspaper / magazine / periodical solicitors (publisher 2+ years; seller is an employee/agent; cost and quantity disclosed)
- [ ] (9) Pennsylvania retail establishments (2+ years under the same name; products/services offered at the establishment; majority of business transacted at the physical location)
- [ ] (10) Telemarketing-service providers (5+ years under same ownership/control; 75% of gross telemarketing revenue from contracts with exempt persons)
- [ ] (11) Food / produce sellers (sales of $500 or less; 2+ years under the same name)
- [ ] (12) SEC-registered or exempt issuers and subsidiaries (15 U.S.C. Section 78l)
- [ ] (13) NEW — anyone not engaged in telemarketing because their calls or messages do not meet the definition of "telephone solicitation"

Outcome of the walk:

- [ ] An exemption clearly applies and counsel concurs in writing → file the determination with your compliance records; re-test on any change of business model.
- [ ] No exemption, or any doubt → register (Step 4).

Step 4 — Register (mechanics under the underlying Act)

[UNVERIFIED against the post-Act 47 consolidation.] The figures below come from 73 P.S. Section 2244, which SB 992 does not amend, as verified in the pre-Act 47 consolidated Act. Confirm the current form, fee, and bond instructions with the Office of Attorney General before filing.

- [ ] Registration application filed with the Office of Attorney General (biennial registration).

- [ ] Application fee: $500 (biennial) [UNVERIFIED — see note above].
- [ ] Surety bond: $50,000, continuous term — or $50,000 in cash, a certificate of deposit, or government bonds in lieu [UNVERIFIED — see note above].
- [ ] Calendar the renewal date and the bond's continuity (a lapsed bond is a lapsed registration posture).
- [ ] Exposure note: failure to register is a misdemeanor of the second degree under the underlying Act — this is the one criminal provision in this area of law; treat the filing as non-optional once the determination is made.
- [ ] Current AG forms, processing times, and any online filing path: confirm directly with the OAG — administrative practice is not stated in the statute. [NOT IN TEXT]